# Gabbar vs State Of U.P. on 12 August, 2021

## Author: Sanjay Kumar Singh

## Bench: Sanjay Kumar Singh

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HIGH COURT OF JUDICATURE AT ALLAHABAD

?Court No. - 72

Case :- CRIMINAL MISC. BAIL APPLICATION No. - 25349 of 2021

Applicant :- Gabbar

Opposite Party :- State of U.P.

Counsel for Applicant :- Jaysingh Yadav

Counsel for Opposite Party :- G.A.

Hon'ble Sanjay Kumar Singh,J.
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Heard learned counsel for the applicant, learned Additional Government Advocate representing the State and perused the record of the case.

The instant bail application has been filed on behalf of the applicant with a prayer to release him on bail in Case Crime No.70 of 2020, under Sections 147, 148, 149, 452, 304, 307, 323, 324, 504 and 506 IPC, Police Station- Girar, District- Lalitpur, during the pendency of trial.

F.I.R. dated 30.12.2020 has been lodged against seven accused persons namely Karan, Ram Singh, Chhantu, Anandi, Chhotey, Gabbar and son-in-law of Chhantu. It is argued by the learned counsel for the applicant that no specific role has been assigned to any of the accused out of seven named in the First Information Report. The deceased side and accused side are of one and common family. The dispute had arisen owing to ancestral property dispute. The question that which party was aggressor is to be seen by the Trial Court. It is next submitted that similarly placed co-accused Anandi has already been granted bail by Coordinate Bench of this Court vide order dated 27.7.2021 passed in Criminal Misc. Bail Application No.25137 of 2021 and on the ground of parity, the

applicant is also entitled to be released on bail. The applicant has no criminal history to his credit and is languishing in jail since 04.01.2021. Lastly, it is submitted that if the applicant is released on bail, he will not misuse the liberty of bail and will cooperate in the early disposal of the case.

Per contra, learned A.G.A. has opposed the prayer for bail of the applicant but conceded on the point that similarly placed aforesaid co-accused has already been enlarged on bail by this Court.

I have considered the submissions of the parties and the fact that the aforesaid similarly placed co-accused has already been enlarged on bail by the Coordinate Bench of this Court.

Keeping in view the nature of offence, evidence, complicity of the accused, submissions of the learned counsel for the parties, I am of the view that the applicant has made out a fit case for bail. Hence, the bail application is hereby allowed.

Without expressing any opinion on the merits of the case, let the applicant Gabbar be released on bail in the aforesaid case crime number on furnishing a personal bond and two sureties each in the like amount to the satisfaction of the court concerned with the following conditions which are being imposed in the interest of justice:-

(i) The applicant shall not temper with the evidence during trial.

(ii) The applicant shall not pressurize/intimidate the prosecution witness.

(iii) The applicant shall appear before the trial Court on the date fixed.

(iv) In case of misuse of any condition during trial, the concerned Court below shall be at liberty to cancel the bail.

(v) The applicant shall file computer generated copy of this order downloaded from the official website of High Court Allahabad.

(vi) The computer generated copy of this order shall be self attested by the counsel of the party concerned.

(vii) The concerned Court/Authority/Official shall verify the authenticity of such computerized copy of the order from the official website of High Court Allahabad and shall make a declaration of such verification in writing.

It is clarified that anything said in this order is limited to the purpose of determination of this bail application and will in no way be construed as an expression on the merits of the case. The trial court shall be absolutely free to arrive at its independent conclusions on the basis of evidence led unaffected by anything said in this order.

Order Date :- 12.8.2021 pks